WEB COPY

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 07-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.DILIP KUMAR

WP(MD) No. 14722 of 2018
and
W.M.P.(MD) No.13254 of 2018

CNR:{HCMD010942842018}

1. R.Sukumaran Nair
   (died)

2. B.Lalithambika,

3. S.L.Aneesh,

4. S.L.Abhilash,

   (P2 to P4 are Substituted vide court order dated.05.08.2024)

..Petitioner(s)

Vs

1. The State Of Tamil Nadu
   Rep. By Its Secretary, Department Of Revenue,
   Fort.St.George, Chennai 600 009

2. The District Collector Of
   Kanyakumari At Nagercoil, Kanyakumari District

3. The Tahsildar
   Vilavancode At Kuzhithurai, Kanyakumari District

4. The Accountant General(a&e)
   Tamilnadu, 361, Anna Salai, Chennai 600 018

..Respondent(s)

PRAYER: To issue a Writ of Certiorarified Mandamus calling for the records of the 4th respondent pertaining to his order in Admissibility Report of

https://www.mhc.tn.gov.in/judis

WEB COPY

Entitlement of Pensionary Benefits of retiring employees in No.Pr.AG(A & E) PEN P26/12620029/4/R2619337 dated 04.03.2016 on his file, and his subsequent order in P26/3/12624782/ADK dated 13.9.2017 on his file, quash the said order dated 04.03.2016, insofar as the period of the petitioners net qualifying service years is stated therein as 19 years, 9 months and 13 days and the petitioner's entitlements are stated therein on that basis and the fourth respondent's said order dated 13.09.2017 in entirety directing him to revise the petitioner's all entitlements for the petitioner's service fixing the petitioner's period of net qualifying service taking into account the petitioner's period of service from 28.04.1980.

For Petitioner(s): Mr.K.N.Thambi

For Respondent(s): Mr.G.Sailendra Babu
Additional Government Pleader

Mr.P.Gunasekaran
For R4

ORDER

The writ petition was originally filed by the employee, Mr.R.Sukumaran Nair, and upon his demise, his legal representatives have been brought on record as petitioners 2 to 4 in this writ petition.

2.The present writ petition is filed challenging the order of the fourth respondent in Pr.AG(A & E) PEN P26/12620029/4/R2619337 dated 04.03.2016 and the consequential order made in P26/3/12624782/ADK dated 13.9.2017.

https://www.mhc.tn.gov.in/judis

WEB COPY

3.Heard Mr.K.N.Thambi, learned counsel for the petitioner, Mr.G.Sailendra Babu, learned Additional Government Pleader for the respondents 1 to 3 and Mr.P.Gunasekaran, learned counsel for the fourth respondent.

4.Mr.KN.Thampi, learned counsel for the petitioners would submit that the original writ petitioner was initially appointed as Vettian on temporary basis in Kunnathoor village by proceedings of the Tahsildar on 25.06.1979; Subsequently, vide proceedings dated 28.04.2019, the Tahsildar, Vilavancode, upon completing a proper selection process and after scrutinizing as many as 27 applications found the original writ petitioner to be more suited to the post of Vettian and accordingly, he had selected and appointed the original writ petitioner as Vettian; thus, the writ petitioner was not appointed as a Village Assistant/Thalayari/Vettian by way of any hereditary entitlement, rather, he was duly selected after a proper selection process; the original writ petitioner had continued in service since his appointment on 28.04.1980 on a permanent basis and upon the issuance of G.O.Ms.No.625, Revenue Department, dated 06.07.1995, the original writ petitioner was appointed as a full time Government employee in the scale of pay of 600-10-750 in the cadre of Village Assistant on 31.05.1995 and he assumed charges in the cadre of Village Assistant from

https://www.mhc.tn.gov.in/judis

WEB COPY

01.04.1995; he retired on attaining the age of superannuation on 31.05.2015 and while calculating the qualifying service to determine the pensionary benefits payable to the original writ petitioner, the Department had taken the same as 19 years, 9 months and 13 days;

5.His foremost submission is that the refusal of the Department to calculate half of the services rendered by the original writ petitioner before he was appointed to the cadre post of Village Assistant from 28.04.1980 to 31.05.1995 is arbitrary and in this regard, he places reliance upon the judgment of a learned single Judge of this Court in WP.(MD) Nos.18734 of 2020 etc and batch, decided on 18.03.2024 and also the judgment of the Hon'ble Supreme Court in SLP(Civil) Diary No.15406 of 2021, dated 12.08.2022.

6.He would submit that when the original writ petitioner had assumed the office as Vettian under the orders of the Tahsildar on a permanent basis and when he had discharged services permanently from 1980 to 1995, the refusal of the Department to give the benefit of 50% of the qualifying service is arbitrary and contrary to the ratio laid down in the above case.

https://www.mhc.tn.gov.in/judis

WEB COPY

7.The learned counsel also raises a supplementary submission that from 01.06.1995 to 31.05.2025, when the original writ petitioner attained the age of superannuation, he had admittedly rendered 20 years of qualifying service and the conclusion arrived at by the Department that he had rendered only 19 years 9 months and 13 days is erroneous. He therefore prays for the allowing of the writ petition by specifically referring to Rule 11 of the Tamil Nadu Pension Rules.

8.Per contra, Mr.G.Sailendra Babu, learned Government Advocate (Civil Side) for the Department would submit that the original writ petitioner was appointed to the cadre post of Village Assistant only on 01.06.1995 and the pension payable to the Village Assistant is governed by a separate Special Rules called as 'The Tamil Nadu Village Assistants Pension Rules, 1995' issued vide G.O.(3D)-No. 9, Revenue (Ser.1(1) Department, dated 28.02.2026 and accordingly, the original writ petitioner was paid pension upon his attaining the age of superannuation. In this regard, he places reliance upon a judgment of the learned single Judge of this Court in ***S.Muthusamy Vs. The Joint Secretary to Governor*** reported in ***2024 Supreme (Online) (MAD) 22901***.

9.Mr.P.Gunasekaran, learned counsel for the Accountant General would invite my attention to a recent Full Bench decision of this Court in ***A.Elangovan***

https://www.mhc.tn.gov.in/judis

WEB COPY

Vs. State of Tamil Nadu and others reported in ***2026 (3) CTC 1***. He also places reliance upon a Division Bench judgment of this Court, to which I am one of the party, in W.A.(MD) No.17 of 2022 decided on 02.09.2026.

10.He would submit that in the above Full Bench decision and the subsequent judgment of the Division Bench, it is categorically held that the individuals, who were employed as Village Assistant/Thalayari prior to 01.06.1995, are not entitled to count 50% of their service rendered in the pre-regularised period i.e., prior to 01.06.1995 for the purpose of pensionary benefits. He, therefore, prays for the dismissal of the writ petition.

11.Heard the learned counsel on either side and perused the materials available on record.

12.A perusal of the materials available on record and the consideration of the arguments advanced by the respective counsel for the parties substantiate that the original writ petitioner was initially engaged on a temporary basis from 25.06.1979 and later on a permanent basis from 28.04.1981 in the post of Vettian in Kunnathoor village. Though he he did not occupy the post as a hereditary claimant to the post of Village Headman and though he was

https://www.mhc.tn.gov.in/judis

WEB COPY

appointed after due selection process, the fact remains that only on 01.06.1995 he was brought into the time scale of pay and was also brought into the cadre of Village Assistant. Only from 01.06.1995, the cadre post of Village Assistant came into existence and all the services rendered by the original writ petitioner before 01.06.1995 was in a non-cadre post. Once it is evident that the original writ petitioner was appointed in a non-cadre post, the judgment of the Full Bench (cited supra) stands automatically attracted. The Full Bench has held as follows:-

> *"20.Even at the very outset, it is to be pointed out that the issue before the Full Bench revolved around the application of Tamil Nadu Pension Rules, 1978, insofar as persons, who were granted regularization post 1.4.2003. However, the post of Village Assistants, which is the subject matter of the present lis, is covered under Rules, 1995 and the Tamil Nadu Pension Rules, 1978 has no application to the case of Village Assistants. The Full Bench, in the aforesaid reference, analysing the various provisions of the Acts and Rules, more particularly governing the Government servants, who were covered under the Tamil Nadu Pension Rules, 1978, went on to record its reasoning and rendering a finding as hereunder :-*
>
> > *"29. Having regard to the above rule position, we proceed to examine the claim of the writ petitioners. Admittedly, the writ petitioners herein were appointed in various departments of the Government in non-provincialised services, on consolidated pay, honorarium or daily wage basis, on contingency basis. They were not appointed against any sanctioned post or regular post. For having rendered such service, they were paid daily wage or wages from the contingency fund. To be specific, the writ petitioners were not*

https://www.mhc.tn.gov.in/judis

WEB COPY

appointed in a cadre post whether on temporary or permanent basis against vacancies which were duly notified. They were appointed on daily wage basis prior to 01.04.2003 on various dates. The service of some of the petitioners were also admittedly regularised after 01.04.2003 in a cadre post as and when permanent vacancies arose or had been notified. The writ petitioners therefore claimed that they are entitled to count half of the service rendered by them on daily wage basis or as contingent employees or on honorarium basis or in nonprovincialised services etc. along with the regular service as has been contemplated under Rule 11 (4). The petitioners also claimed equity on par with one Murugan, in whose favour, the Government passed G.O. (D) No.332, Environment and Forest Department dated 19.11.2008 by which the service rendered by the said Murugan, on daily wage basis for about 20 years was ordered to be counted along with his regular service rendered by him till his retirement on 30.09.2005. In other words, even though the service of the said Murugan was regularised after 01.04.2003, yet, as a special case, theGovernment issued G.O. (D) No.332, Environment and Forest Department dated 19.11.2008 and ordered to count half of the service rendered by him on daily wage basis along with his regular service. This had apparently sparked and/or kick-started a volley of writ petitions to be filed before this Court at the instance of persons similarly placed like the writ petitioners in this batch. This Court had also, based on the order passed by the Government in G.O. (D) No. 332, Environment and Forest Department dated 19.11.2008 directed the Government to count half of the service rendered by the persons similarly placed like the petitioners along with their regular service, purportedly on the ground of equity. The State Government filed writ appeals before the Division Bench of this Court, as against few cases in which such directions were issued by the single Bench.

.....

31.On behalf of the writ petitioners, it was contended that the writ petitioners have been temporarily employed with nomenclature such as daily wage

https://www.mhc.tn.gov.in/judis

WEB COPY

employees, on consolidated pay or on honorarium basis etc. and as per Rule 11 (1) the service rendered by them in such temporary employment has to be counted along with the regular service in a cadre post. We wish to observe that the word temporary or officiating service employed in Rule 11 (1) is referable to 'temporary appointment' contemplated under Rule 10 (a) (i) of Tamil Nadu State and Subordinate Services Rules. On a reading of Rule 10 (a) (i), the wordings employed thereof are explicit and clear. A temporary appointment made to a government service is the one which is made in a post borne on the cadre of a service, class or category, meaning thereby such temporary appointment is made in an existing vacancy or notified vacancy. Rule 10 (a) (i) further makes the position clear that such appointment is permissible to be made by the appointing authority in case of emergency to fill the vacancy, in public interest. For such appointment, the appointing authority has to form an opinion that the procedural process for appointment to the cadre post will take some time and that such delay would prejudice the public interest. In such circumstances, Rule 10 (a) (i) can be invoked for appointing a candidate on temporary appointment in a sanctioned post. The service of such person, though appointed on temporary appointment can later be regularised by following the due procedure. The significance for invoking Rule 10 (a) (i), apart from public interest, is the existence of sanctioned post or vacancy in a post borne on the cadre of a service, class or category. Thus, Rule 10 (a) (i) cannot be invoked in the absence of an existing vacancy in a cadre post. Therefore, we are of the view that the temporary appointment mentioned in Rule 11 of the Pension Rules, in the realm of Service Law Jurisprudence, is referable only to Rule 10 (a) (i) of the Tamil Nadu State and Subordinate Services. The writ petitioners were however appointed on daily wage basis on payment of honorarium or consolidated pay and did not come within the fold of Rule 10 (a) (i) of the Tamil Nadu State and Subordinate Services Rules. Only the appointments made under the provisions of Rule 10 (a) (i) of the aforesaid Rules alone can be considered as temporary appointment. Therefore, the submissions made on behalf of the petitioners relying upon Rule 3 (o) has to be

https://www.mhc.tn.gov.in/judis

WEB COPY

rejected. Admittedly the Writ Petitioners were not appointed invoking Rule 10(a)(i).

.....

34.Rule 11 (4) of the Tamil Nadu Pension Rules, 1978 confers an additional benefit to such class of Government servants to include half of the service rendered in the above capacity for determining qualifying service provided their service was regularized before 01.04.2003. Rule 11 (4) by itself is not intended to deny pension to respondents/writ petitioners if appointment was prior to 01.04.2003 in the cadre post, whether temporary or permanent.

35.Rule 11 (4) merely provides a method for determining the 'qualifying service' for government employees who were absorbed into service before cut-off date of 01.04.2003.

36.The significance of Rule 11 (4) is to bring the service of a government employee / servant within the realm of qualifying service to count half of the service rendered under the State Government in non-provisionalised service, consolidated pay, honorarium or daily wages basis before 1st April 2003 for retirement benefits, if the absorption to service was before 01.04.2003.

37. Rule 11 (4) of the Tamil Nadu Pension Rules, 1978 allows a Government employee / servant appointed in a cadre post before 01.04.2003 as per the Rules whether in temporary or permanent capacity to include 50% of the service rendered in (i) non-provincialised services; (ii) Consolidated pay; (iii) honorarium; or (iv) daily wage basis along with regular service subject to conditions stipulated therein.

38. For instance if a government employee/servant was appointed and absorbed between the cut off dates i.e. 01.01.1961 and 01.04.2003, then he/she will be entitled to include half of the service rendered under the State Government in (i) non-provincialised services; (ii) Consolidated pay; (iii) honorarium; or (iv) daily wage basis into his/her services for determination of qualifying service.

https://www.mhc.tn.gov.in/judis

WEB COPY

39. On the other hand, if a Government employee / servant was not absorbed between the aforesaid cut off dates, he/she will not be entitled to include half of the service rendered under the State Government in (i) non-provincialised services; (ii) Consolidated pay; (iii) honorarium; or (iv) daily wage basis into his/her services even though such person may be entitled to Government Pension under the Rule if he/she was appointed in a cadre post on or before 01.04.2003 but was absorbed after the said date.

40. For example, if a person is appointed prior to 01.04.2003 in a non-provincialised service or on consolidated pay or on honorarium or daily wage basis and later to a cadre post on temporary basis under Rule 10 (a) (i) of The Tamil Nadu State and Subordinate Service Rules before 01.04.2003 and such service is regularised after 01/04/2003, such Government employee is eligible for Government Pension under the Tamil Nadu Pension Rules but at the same time would not be eligible to include half of services rendered in such capacity viz., i) Non-provincialised Services ii) Consolidated pay; iii) honorarium; or iv) daily wage basis to hisregular service.

41. Thus, a government servant who may have been appointed before the cut-off date of 31.03.2003 may be entitled to government pension if he satisfies the requirement of qualifying service in Rule 3(o) of the Tamil Nadu Pension Rules, 1978. However, such a person will not be entitled to add half of the past service held in any one of the four capacity mentioned above prior to 01.04.2003 since his regularisation is subsequent to the cut off date. Therefore, only those who were appointed prior to 01.04.2003 whether as temporary appointment but in accordance with Rule 10 (a) (i) alone will be entitled to get pension.

42. The cut off date i.e. on or after 01.04.2003 in proviso to Rule 2 of the Tamil Nadu Pension Rules, 1978 will not per se bar a person from getting pension if such a person had joined the service in accordance with the provisions of Tamil Nadu State and Subordinate Service Rules i.e in the cadre whether on temporary or

https://www.mhc.tn.gov.in/judis

WEB COPY

permanent basis. Services rendered before the cut off date of 01.04.2003, can be added to the regular service only if the service was regularised before the said date for determining the qualifying service. Therefore, in our opinion, it would be appropriate to say that Rule 11 (4) gives the meaning of qualifying service rather than giving significance to cut off date. Therefore, it is clear that only if the appointment is in accordance with the Rules and such appointment is prior to 01.04.2003, 50% of the past service can be added along with the regular service.

……..

44. The aforesaid Judgment of the Honourable Supreme Court would squarely apply to this case. Merely because this Court has passed multiple number of orders in favour of some of the similarly placed persons like the writ petitioners, it will not operate as res judicata or it will preclude the State Government from questioning those orders in a parallel or similar proceedings. In such circumstances, we are of the view that the orders, hitherto passed by this Court, both single Bench or the Division Bench will not operate as a bar for maintaining these writ appeals or writ petitions or those orders will not be considered as the one which laid down any binding precedent to be followed in other cases. An order, which was not passed in accordance with the statutory provisions, need not be followed by the Court at the instance of similarly placed persons."

21. As already stated above, the aforesaid decision of the Full Bench is with regard to Tamil Nadu Pension Rules, 1978, but the ratio laid down therein with regard to the manner in which a service in a post has to be appreciated in service jurisprudence has been clearly spelt out therein, wherein the Full Bench has held that for seeking the benefit of counting past service prior to regularisation, the post in which a person is accommodated should be either temporary or officiating or permanent and should be borne out of cadre of a service, class or category. In fine, there should be a cadre

https://www.mhc.tn.gov.in/judis

WEB COPY

post within which the person should be fitted in, which alone would give a subsisting right to the said person to seek for counting of the said service upon regularization. Insofar as persons appointed on daily wage basis or on payment of honorarium or consolidated pay and do not come within the purview of a post borne out of a cadre, such persons would not be entitled to seek counting of past service in a post not borne out of a cadre.

……..

27. Further, there is a clear indication that the Tamil Nadu Pension Rules covers the persons under the employment in Government service and only for that purpose separate rules in the form of Rules, 1995, have been framed for the purpose of granting pensionary benefits to the Village Assistants. As already stated above, the Village Assistants are covered under the Tamil Nadu Village Assistants Pension Rules and they would not fall within the ambit of the Tamil Nadu Pension rules, 1978, as the said rules are not applicable to the services of Village Assistants/Talayaris, they being in a non-pensionable establishment and, that too, as part-time employees not borne in a cadre post. Further, when the service of Village Assistants/Talayaris prior to regularisation not being in a cadre post the said period cannot be counted for the purpose of pension under the Tamil Nadu Village Assistants Pension Rules, as only employees in temporary, officiating and permanent posts are permitted to count the said service for arriving at the qualifying service, as is prescribed under Rule 4 (a) of Rules, 1995. Similar view has been expressed by the Full Bench relating to Government Servants under the Tamil Nadu Pension Rules, 1978, in Kaliyamoorthy case, which is pari materia to the service of Village

https://www.mhc.tn.gov.in/judis

WEB COPY

Assistants/Talayarius and, therefore, the Village Assistants would not be entitled to count their service rendered in a part time employment prior to the regularisation of the post on 1.6.1995 for the purpose of calculation of pensionary benefit.

.....

30. It is submitted by the learned Advocate General across the Bar that the post of Village Assistants is a part-time employment and only on benevolence, the Government had considered and regularised the services of the Village Assistants from 1.6.1995 and, therefore, the service of persons in the post of Village Assistants prior to 1.6.1995, by no stretch, could be held to be a post borne out of a cadre. Further, there is no material placed in the form of statutory prescription that the posts held by the Village Assistants are posts borne out of a cadre and carried time scale of pay and in the absence of such a material, counting 50% of the said period rendered in a non-provincialised service for the purpose of calculating the pensionary benefits would not arise.

31. The findings recorded in Balachandran case has clearly laid down the correct law, more particularly appreciating the ratio with regard to the legal position that only such of the posts borne out of cadre alone are entitled for pensionable benefit as has been enunciated in Kaliyamoorthy case with reference to qualifying service and further holding that the persons employed in the said posts alone are entitled to seek for counting 50% of their service rendered in the said post prior to regularisation for the purpose of pensionary benefit. However, the decisions in Velmayil and Chinna Karuppaiah case have not laid down the correct law as they have neither adverted to the position of law relating to posts borne out of

https://www.mhc.tn.gov.in/judis

WEB COPY

the cadre and also with reference to the part-time employment of the Village Assistants and, therefore, the said decisions can only be said to be per incuriam as the relevant provisions of the various Rules governing the conduct, service and pension of Village Assistants have not been adverted to.

.....

33. In fine, on the reasons aforesaid, this Court answers the reference in the following terms :-

> *"The persons, who were employed as Village Assistants/Talayaris prior to 1.6.1995, the date on which the service of Village Assistants/Talayaris were regularised, would not be entitled to count 50% of their service rendered in the pre-regularised period, viz., prior to 1.6.1995, for the purpose pensionary benefits, as the said posts held by them were part-time posts and not posts borne out of service or cadre."*

13.The judgment relied upon by Mr. K. N. Thambi, learned counsel for the petitioner is that of the learned single Judge of this Court which was decided on 18.03.2024 at least two years before the judgment of the Full Bench came. Mr. K. N. Thambi specifically relied upon the following paragraphs:-

"31.In a latest judgment of a Full Bench of this Court dated 26.02.2024 made in W.P.No.23823 of 2023 [M.Sivappa Vs. The State of Tamil Nadu and 4 others] had dealt a reference on the issue of retrospective/prospective effect of G.O.Ms.No.74 dated 27.06.2013. Though the above judgment does not deal with anything about services of Village Assistants, the said judgment has made a detailed analysis of

https://www.mhc.tn.gov.in/judis

WEB COPY

how the Government cannot exploit the services of its employees and that too basic level servants, more specifically 86 categories of post in the Tamil Nadu Basic Service. The full bench had concluded and answered that the view that Government is free to appoint persons either in part-time or on a full-time temporary basis to permanent posts and oust them out at its whims and fancies can not be accepted and that such unbridled exercise of indiscretions by the State Government would amount to exploitation.

32. The post of Village Assistant does not come under the 86 categories of Tamil Nadu basic service. But their post in the village is just basic, as they had been designated as Village Assistants / Thalaiyaris / Village Kavalar. So the principle adopted in M.Sivappa case (cited supra) for resolving the issue involved in the said case can be considered as a guiding light to solve the continuing conundrum of the nature of the past services of the village assistants. In this regard it is relevant to extract the relevant paragraphs of the Full Bench Judgment as under:

> *"35. The other judgment, which is cited in the order of reference as one that would support the view that G.O.Ms.No.74 dated 27.06.2013 is retrospective, of the Division Bench in State of Tamil Nadu. by its Secretary, Public Works Department. and another Vs.S.John Charles and others. The Appeal arose out of a judgment of the learned Single Judge of this Court, which had quashed Clause 6 of G.O.Ms.No.74 dated 27.06.2013, which restricts the operation of G.O.Ms.No.22 dated 28.02.2006 only to full time employees. The power of the Government to change its policy was upheld and in the course of the order, the Division Bench has observed that the Government has not taken away the right to regularize the services subsequently provided those persons had completed 10 years of service as on 28.02.2006. The Division Bench described the action of the Government in passing G.O.Ms.No.74 dated*

https://www.mhc.tn.gov.in/judis

WEB COPY

27.06.2013 as an attempt to treamline the scheme relating to regularisation. Even the other judgments of this court, which have been referred to by us earlier, reaffirm the view that parity should be maintained, there should be no exploitation by the Government which is a welfare State and temporary or part-time employment to permanent posts should be stopped.

36. Having considered the entire literature that is available in the form of various pronouncements of this court, as well as the Hon'ble Supreme Court,we find it difficult to accept the judgment of the Division Bench in State of Tamil Nadu. by its Secretary, Public Works Department. and another vs. S. John Charles and others, as one laying down the law to the effect that the Government is free to appoint persons either in part-time or on a full-time temporary basis to permanent posts and oust them out at it whims and fancies and we conclude that such unbridled exercise of indiscretions by the State Government would amount to exploitation.

37. We are of the considered opinion that wherever the posts are permanent in nature and they come within 86 categories of posts which form the Tamil Nadu Basic Service, temporary or part-time employment should be avoided and those persons, who have been appointed to such posts and who have completed 10 years of service as on 28.02.2006 would be entitled to regularisation dehors the nomenclature that is given to the appointment."

33. So the rationale of the latest Full Bench judgment in the above judgment in my view would override the position taken by the earlier Division Bench for depriving the benefit of including the past services of the village assistant for pensionary benefit.

34. In the background of the above judgment of the full bench and in the absence of any rule in the Village Assistant Pension Rules to include the past service of a village assistant who got regularized on 01.06.1995 and also considering the saving clause present in the said rules the Village Servants Service Rules 1980 that those rules would

https://www.mhc.tn.gov.in/judis

WEB COPY

not adversely affect the persons covered therein, I feel recourse can be had to the general rules of Tamil Nadu Pension Rules, 1978, so far it relates to the computation of past services for all those village assistants whose services have been regularized as on 01.06.1995 and who continued in the employment as village assistants or promoted as Office Assistants and Village Administrative Officers and retired accordingly.

35. In view of the above discussions these batch of writ petitions are disposed with the following observation and directions:

(i) Those who lost their job on 14.11.1980 and who never got re employment were given with a special pension with effect from 05.12.1986. Hence, there is no question of granting any further relief for them than what has already been granted.

(ii) For those village assistants whose services have been regularised as on 01.06.1995 but continued to be in service, till retirement, half of their past services shall be included along with the whole of their services rendered subsequent to their regularisation till retirement and computed as qualifying years of service for the purpose of pensionary benefit.

(iii) The respondents are directed to consider the representations of all those petitioners who are qualified as above (ii), for inclusion of 50% of their past services for the purpose of pensionary benefits and pass revised orders for sanctioning and disbursing the same within a period of 8 weeks from the date of receipt of the copy of this order.

(iv) No costs. Consequently, the connected miscellaneous petitions are closed."

https://www.mhc.tn.gov.in/judis

WEB COPY

14.The decision of the Hon'ble Supreme Court in SLP(Civil) Diary No.15406 of 2021, dated 12.08.2022 is not giving any benefit to the case of the original writ petitioner. It only states that if the writ petitioner is regularized before 01.04.2003, he may not be covered by the earlier Full Bench decision in the case of ***The Government of Tamil Nadu Vs. R.Kaliyamoorthy***, ***W.A.Nos.70 of 2018 etc and batch***, ***dated 03.12.2019***, and liberty is given to the applicant before the Supreme Court to work out his remedy in the manner known to law. There is no ratio laid down.

15.I am of the considered opinion that the subject case is squarely covered by the ratio laid down by the latest Full Bench, more particularly paragraph No. 33 where the Full Bunch has categorically held that any person who was employed as a Village Assistant/Thalayari before 01.06.1995 is not entitled to count 50% of his service rendered in the pre-regularized period ie., before 01.06.1995 for pensionary benefit purpose, since the post does not form part of any service or cadre. In the subject case, the petitioner is not able to substantiate that he was appointed in a cadre post. In the absence of any such material brought to my notice, I am unable to come to the rescue of the petitioner. I am also bound by the decision of the Co-ordinate Division Bench of this Court, to which I am a party, in W.A.(MD) No.17 of 2022 decided on

https://www.mhc.tn.gov.in/judis

WEB COPY

02.09.2026.

16.For all the above reasons, I do not find any merit in the case of the writ petitioner. Accordingly, the Writ Petition stands dismissed. However, liberty is given to the legal representatives of the original writ petitioner, viz., petitioners 2 to 4, to submit a representation to the Department with regard to the claim that the original writ petitioner has completed 20 years of qualifying service and that there is a mathematical calculation error insofar as the Department's conclusion that the petitioner has rendered only 19 years 9 months and 13 days is concerned. If any such representation is made by the petitioners 2 to 4, the same shall be considered and appropriate orders shall be passed by the Department within a period of four weeks from the date of receipt of such representation. No costs. Consequently, connected Miscellaneous Petition is closed.

07-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
mm

https://www.mhc.tn.gov.in/judis

WEB COPY

To

1. The State Of Tamil Nadu
   Rep. By Its Secretary, Department Of Revenue, Fort.St.George, Chennai 600 009

2. The District Collector Of
   Kanyakumari At Nagercoil, Kanyakumari Dist

3. The Tahsildar
   Vilavancode At Kuzhithurai, Kanyakumari Dist

https://www.mhc.tn.gov.in/judis

WEB COPY

N.DILIP KUMAR, J.
mm

WP(MD) No. 14722 of 2018

07-10-2026

https://www.mhc.tn.gov.in/judis